

**CV-25-003541 GLORIA, ESTEBAN vs FINNEGAN, CHERYL LYNN –
Defendant Motion for Fees and Costs Pursuant to CCP Section 1038 –
GRANTED, and unopposed.**

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court finds that, at a minimum, Plaintiff maintained this matter without reasonable cause despite repeated acknowledgement that he was aware of no evidence which would remove this matter from the requirements of the Government Claims Act. As a result, Defendant, as the prevailing party on summary judgment, is entitled to recover her defense costs pursuant to Code Civ. Proc. § 338. Based on the moving papers and supporting evidence, and in the absence of opposition, the Court finds that the time expended, the hourly fees incurred, and the expenses claimed are reasonable under the circumstances. Therefore, the Court finds that Defendant is entitled to recover \$15,895.01 from Plaintiff herein. Defendant shall serve and submit a proposed order consistent with the Court's ruling herein. (Cal. Rules of Court, rule 3.1312.)

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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